



Bureau of Experts at the Council of Ministers
Official Translation Department

Shura Council Law

Royal Order No. A/91
March 2, 1992

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Law are provided in the Appendix.

For any comments or inquiries, please contact the Official Translation Department at:

otd@boe.gov.sa

No.: A/91

Date: 27/8/1412H

**With the help of Allah,
We, Fahd bin Abdulaziz Al Saud,
King of the Kingdom of Saudi Arabia,**

In compliance with Almighty Allah's words: "and consult them in the affair" and His words: "and who (conduct) their affairs by mutual consultation"; Following His Messenger Peace Be Upon Him in consulting his companions; pursuant to the dictates of public interest; and

Upon perusal of the Law of the Shura Council, promulgated by Royal Order of 1347H;
Have ordered the following:

First:

The Shura Council Law, attached herewith, shall be approved.

Second:

This Law shall supersede the Law of the Shura Council, promulgated in 1347H. Organization of the Council shall be determined by Royal Order.

Third:

Upon the entry into force of this Law, all applicable laws, orders, and resolutions shall remain in effect until they are amended in accordance therewith.

Fourth:

This Law shall take effect within six months from the date of its publication.

Fifth:

This Law shall be published in the Official Gazette.

**Signed
Fahd bin Abdulaziz**

Shura Council Law

Article 1

In compliance with Almighty Allah's words:

"Because of the mercy of Allah you dealt with them gently. And were you severe, harsh-hearted, they would have broken away from about you; so pass over their faults and ask for Allah's forgiveness for them; and consult them in the affair. Then when you have taken a decision, put your trust in Allah. Certainly Allah loves those who put their trust in Him"; and

His words: "Those who answer the call of their Lord (i.e. to believe that He is the only one Lord (Allah) and to worship none but Him Alone) and offer their prayer perfectly, and who conduct their affairs by mutual consultation, and who spend of what we have bestowed on them". (XLII, 38); and

Following His Messenger Peace Be Upon Him (PBUH) in consulting his companions and urging the nation to engage in consultation, the Shura Council shall be established to exercise the tasks entrusted to it, in accordance with this Law and the Basic Law of Governance, while adhering to the Quran and the Sunna of the Messenger (PBUH), maintaining brotherly ties and cooperating unto righteousness and piety.

Article 2

The Shura Council shall hold fast to the bond of Allah and adhere to the sources of Islamic legislation. Members of the Council shall serve public interest and preserve the unity of the community, the entity of the State, and the interests of the nation.

Article 3

The Shura Council shall consist of a chairman and 60 members chosen by the King from among scholars, experts, and specialists. Their rights, duties, and all their affairs shall be specified by royal order.

Article 4

A member of the Shura Council shall be:

- a) a Saudi national by descent and upbringing;
- b) well known for uprightness and competence; and
- c) not less than 30 years of age.

Article 5

Any Shura Council member may submit a request to be relieved from membership to the Chairman of the Shura Council, who in turn shall bring said request before the King.

Article 6

If a Shura Council member fails to perform his duties, he shall be interrogated and tried according to rules and procedures to be issued by royal order.

Article 7

When the position of a Shura Council member becomes vacant for any reason, the King shall choose a replacement and issue a royal order to this effect.

Article 8

A Shura Council member may not exploit his membership for his own interest.

Article 9

Membership of the Shura Council may not be combined with any government post or the management of any company, unless the King deems it necessary.

Article 10

The Chairman, Vice Chairman, and Secretary General of the Shura Council shall be appointed and relieved by royal order. Their grades, rights, duties, and all their affairs shall be determined by royal order.

Article 11

Prior to assuming their duties, the Chairman, members, and Secretary General of the Shura Council shall take the following oath before the King:

“I swear to Allah Almighty to be loyal to my religion, then to my King and Country, and not to reveal any of the State’s secrets, to preserve its interests and laws, and to perform my duties with sincerity, integrity, loyalty, and fairness”.

Article 12

The city of Riyadh is the seat of the Shura Council. The Council may convene in another area within the Kingdom if the King deems it appropriate.

Article 13

The term for the Shura Council shall be four Hijri years effective from the date specified in the royal order issued for its formation. A new council shall be formed at least two months before the end of the current Council’s term. If the term expires before the formation of the new council, the previous one shall remain active until the new council is formed. When a new council is formed, the number of the newly selected members shall not be less than half of the Council’s members.

Article 14

The King, or his designee, shall deliver an annual royal speech at the Shura Council on the domestic and foreign policies of the State.

Article 15

The Shura Council shall express its opinion on the public policies of the State referred to it by the Prime Minister. The Council shall specifically have the right to exercise the following:

- a) discuss and comment on the general plan for economic and social development;
- b) review and provide recommendations on laws and regulations, treaties, international agreements, and concessions;
- c) construe laws; and
- d) discuss and provide recommendations on the annual reports submitted by ministries and other government agencies.

Article 16

Meetings of the Shura Council shall not be valid unless attended by at least two-thirds of its members, including the Chairman or his designee. Resolutions shall not be valid unless approved by the majority of Council members.

Article 17

The Shura Council's resolutions shall be brought before the Prime Minister who shall refer them to the Council of Ministers for consideration. If the views of both Councils coincide, the resolutions shall come into force following the King's approval. If the views are at variance, the King may decide whatever he deems appropriate.

Article 18

Laws, treaties, international agreements, and concessions shall be issued and amended by royal decree after review by the Shura Council.

Article 19

The Shura Council shall form from among its members the standing committees necessary to exercise its powers. The Council may also form ad hoc committees to discuss any issue on its agenda.

Article 20

The Shura Council's committees may seek the assistance of non-council members upon the approval of the Chairman of the Council.

Article 21

The Shura Council shall have a general panel composed of the Chairman of the Council, Vice Chairman, and heads of the standing committees.

Article 22

The Chairman of the Shura Council shall submit to the Prime Minister a request to call any government official to attend the sessions of the Shura Council when matters relating to his jurisdiction are discussed. He shall have the right to participate in the discussion but not the right to vote.

Article 23

Any group of 10 members of the Shura Council shall have the right to propose a new draft law or an amendment to an existing law, and submit it to the Chairman of the Council. The Chairman shall bring the proposal before the King.

Article 24

The Chairman of the Shura Council shall submit a request to the Prime Minister to provide the Council with statements and documents in the possession of government agencies, as deemed necessary by the Council.

Article 25

The Chairman of the Shura Council shall submit an annual report to the King regarding the Council's achievements in accordance with provisions of the Internal Regulations of the Council.

Article 26

Employees of the Council's bodies shall be subject to civil service laws unless otherwise provided for by the Internal Regulations.

Article 27

The Shura Council shall be allocated a special budget to be approved by the King. It shall be disbursed in accordance with rules to be issued by royal order.

Article 28

The Shura Council's financial matters, auditing, and closing accounts shall be regulated in accordance with special rules to be issued by royal order.

Article 29

The Internal Regulations of the Shura Council shall define the powers of its Chairman, Vice Chairman, Secretary General, bodies, meeting and voting procedures, work procedures, and committee work procedures. The regulations shall also specify the rules and protocols of debate, and other matters conducive to order and discipline within the Council, so that it may exercise its powers for the welfare of the Kingdom and the prosperity of its people. These regulations shall be issued by royal order.

Article 30

This Law may not be amended except in the same manner of its promulgation.

Appendix

Amendments

November 26, 2003 (Shawwal 2, 1424H)

Royal Order No. A/198 provides for the following:

- Amending Article 17 to read as follows:
"The Shura Council's resolutions shall be brought before the King who shall decide the resolutions to be referred to the Council of Ministers.
 - If the views of both the Council of Ministers and the Shura Council coincide, the resolutions shall come into effect following the King's approval.
 - If the views of the two Councils are at variance, the matter shall be referred back to the Shura Council to express its views on such variance and shall then bring it before the King to take appropriate action".
- Amending Article 23 to read as follows:
"The Shura Council shall have the right to propose and review a new draft law or an amendment to an existing law. The Chairman of the Shura Council shall bring before the King the Council's decisions".

April 11, 2005 (Rabi' I 2, 1426H)

Royal Order No. A/26 provides for the following:

- Amending the beginning of Article 3 to read as follows:
"The Shura Council shall consist of a chairman and 150 members....".

December 24, 2007 (Thul-Hijjah 14, 1428H)

Royal Order No. A/181 provides for the following:

- Amending Article 10 to read as follows:
"The Chairman, Vice Chairman, Assistant Chairman, and Secretary General of the Shura Council shall be appointed and relieved by royal order. Their grades, rights, duties, and all their affairs shall be determined by royal order".
- Amending Article 21 to read as follows:
"The Shura Council shall have a general panel composed of the Chairman of the Council, Vice Chairman, Assistant Chairman, and heads of the standing committees".
- Amending Article 29 to read as follows:
"The Internal Regulations of the Shura Council shall define the powers of its Chairman, Vice Chairman, Assistant Chairman, Secretary General, bodies, meeting and voting procedures, work procedures, and committee work procedures. The regulations shall also specify the rules and protocols of debate, and other matters conducive to order and discipline within the Council, so that it may exercise its powers for the welfare of the Kingdom and the prosperity of its people. These regulations shall be issued by royal order".



January 11, 2013 (Safar 29, 1434H)

Royal Order No. A/44 to read as follows:

- Amending Article 3 to read as follows:
"Article 3

The Shura Council shall consist of a chairman and 150 members chosen by the King from among scholars, experts, and specialists, provided that the representation of women therein is not less than 20 percent of the members. Their rights, duties, and all their affairs shall be specified by royal order".